AUSTRALIAN FAMILY LAW · SYSTEM BASICS & SETTLEMENT STRATEGY

Divorce, Property & Parenting Basics + Settlement Table Guide

Why emotional fault-finding wastes savings under Australia's No-Fault Family Law Act (updated for 10 June 2025 & 1 July 2026), and when to consult Park & Co for Consent Orders or non-responsive spouses.

No-Fault	12m / 24m	$4,950	Table Call
s 48 Divorce & Jun 2025 Act	Strict Property Time Limits	Fixed-Fee Consent Orders	Non-Responsive Spouse Demand

Park & Co Lawyers · Family Law Consultation Form: form.jotform.com/262472844554060
Legal Practitioner Director: Chang Min Park · Official Inquiry Link: https://parklawyers.com.au/links/

Australian Family Law System Basics & Settlement Table Guide (General Legal Information · No Retainer)
Because Australia operates a strict **No-Fault Family Law system (Family Law Act 1975 s 48)**, private lawyers cannot achieve moral "punishment" in emotional breakup fights. Conversely, Park & Co Lawyers adds maximum commercial value in two core situations: **(1) locking in mostly agreed settlements via binding Consent Orders**, and **(2) bringing a non-responsive or stonewalling ex-partner to the negotiation table**. Official Link: https://parklawyers.com.au/links/.

01 The 3 Core Pillars of Australian Family Law (Updated for 10 June 2025 & 1 July 2026)

1. NO-FAULT DIVORCE (S 48)

Divorce (12m + 1d Separation)

- Zero fault inquiry or infidelity damages.
- **10 Jun 2025 Reforms:** <2yr marriage counselling **repealed**; Sole applicants with children <18 **no longer attend court** unless opposed.
- Fee: **$1,170** (**$390** reduced · **both** spouses need cards on Joint; never serve papers yourself).

2. 4-STEP PROPERTY (SS 79/90SM)

Property Split & Strict Clocks

- (1) Value global AU/overseas asset, debt & super pool → (2) Financial & homemaker contributions (**Jun 2025: economic abuse & companion animals codified.**) → (3) Future needs → (4) Just & equitable.
- **Deadlines: 12m** post-divorce / **2 yrs** de facto separation.

3. PARENTING (SS 60CC / 60I)

Best Interests & FDR Rule

- Equal shared responsibility presumption repealed · strictly **6 child safety & best-interests factors**.
- Mandatory pre-court mediation via Family Relationship Centre (1800 050 321) to obtain a **s 60I Certificate** unless urgent violence/abuse applies.

02 Decision Matrix: When to Self-Represent (DIY) vs When to Instruct Park & Co

Your Current Situation	Best Track	Exact Action Protocol & Verified FY 2026–27 Court Fees
Emotional Fault Dispute / Straightforward Divorce Only	**DIY + Public FDR** (Zero Legal Fee Drain)	Do not burn savings fighting over breakup blame. Self-file online Divorce at comcourts.gov.au (**$1,170 / $390**; attach third-party Affidavit if separated under one roof) and use subsidised FDR (1800 050 321) for parenting schedules.
Contested Small Pool (PPP < $550,000 excl. super)	**PPP Fast-Track** (DIY / Legal Aid)	Use the streamlined **PPP Financial Summary** track (filing fees: **$455–$895**) with free initial advice from Legal Aid QLD (1300 65 11 88) or WLSQ (1800 957 957).
Consultation Trigger 1: Agreement Mostly Reached	**Consult Park & Co Online Form**	Informal private notes are unenforceable. We convert your agreement into binding **Consent Orders ($4,950 fixed-fee package + $215 court fee, incl. 28-day Super Trustee clearance & stamp-duty exemption)** or a BFA / BCSA → **https://form.jotform.com/262472844554060**
Consultation Trigger 2: Non-Responsive / Stonewalling Ex-Spouse	**Consult Park & Co Online Form**	If your ex-partner ignores messages or hides finances, we serve a **formal Solicitor's Negotiation & Mandatory Full & Frank Financial Disclosure Demand Letter** (putting them on notice of costs consequences) to bring them to the table across $300k–$2M+ AU/international pools or Partner Visa DV (Div 1.5) → **https://form.jotform.com/262472844554060**

03 DIY Divorce Service Traps & Pre-Questionnaire Settlement Checklist

DIY DIVORCE SERVICE & ONE-ROOF RULES

Three Fatal DIY Divorce Mistakes to Avoid

- **Never Hand-Serve Your Spouse Yourself:** In a Sole Divorce, an adult third party (18+) or process server must serve papers at least **28 days before hearing** (**42 days** overseas) and complete the Divorce Service Kit Affidavits.
- **Separation Under One Roof:** Requires an independent adult witness Affidavit proving separate bedrooms, finances, and household life.
- **Overseas Marriage Certificates:** Attach colour scan + accredited **NAATI translation + Translator Affidavit**.

CONSENT ORDERS ($215) & JOTFORM PREP

Consent Orders Rules & 3 Items for Our Questionnaire

- **28-Day Super Trustee Notice:** Any Superannuation Split requires serving draft orders on the Fund Trustee at least **28 days before filing** for procedural fairness approval.
- **Identical .docx Rule:** Upload both the signed PDF Minute and an identical editable .docx Minute (+ Notice of Risk if parenting orders are sought).
- **Have Ready for Jotform (262472844554060):** (1) Ex-partner's full legal name, (2) Separation/Divorce dates, and (3) Rough AU/overseas asset & super totals.

When to Consult Park & Co Lawyers: Start via Our 3-Minute Family Law Consultation Form

- **Fastest 3-Minute Preparation Step:** Complete our 3-minute **Family Law Consultation Form (https://form.jotform.com/262472844554060)** with the other party's full name (for mandatory conflict check), separation date, approximate AU/overseas asset pool, and whether you have an agreement in principle or need us to bring a non-responsive ex-partner to the table.
- **Further Reading & Hub:** Partner Visa Family Violence Guide https://parklawyers.com.au/blog/2023/07/29857/ · Official Firm Links Hub https://parklawyers.com.au/links/ (**Park & Co Lawyers** · Legal Practitioner Director: **Chang Min Park**).

Park & Co Lawyers · Legal Practitioner Director: Chang Min Park (Underwood QLD)

Family Law Questionnaire: form.jotform.com/262472844554060 · Hub: https://parklawyers.com.au/links/